

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 08/12/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C22-02342
CASE NAME: JULIO CRUZ VS. CAMBRIDGE REAL ESTATE SERVICES, INC.

FILED BY:

TENTATIVE RULING:

This case management conference ("CMC") trails the hearing for Line 5. Since no appearance is required for Line 5, this case management conference is **vacated**.

2. 9:00 AM CASE NUMBER: C25-00893
CASE NAME: JESSE DAVIS VS. KATHRYNE DANIELS

FILED BY:

TENTATIVE RULING:

This case management conference ("CMC") trails the hearing for Line 13. The parties are ordered to appear via Zoom or in person, unless the tentative ruling for the motion is uncontested. If the

tentative ruling is uncontested, this CMC is vacated.

3. 9:00 AM CASE NUMBER: C25-02151
CASE NAME: JUSTIN MIDYETT VS. PACIFIC GAS AND ELECTRIC COMPANY

FILED BY:

TENTATIVE RULING:

This case management conference ("CMC") trails the hearing for Line 14. The parties are ordered to appear via Zoom or in person, unless the tentative ruling for the motion is uncontested. If the tentative ruling is uncontested, this CMC is vacated.

4. 9:00 AM CASE NUMBER: C25-03107
CASE NAME: RENE MACHADO VS. VALUE PLUMBING CO.

FILED BY:

TENTATIVE RULING:

This case management conference ("CMC") trails the hearing for Line 15. The parties are ordered to appear via Zoom or in person, unless the tentative ruling for the motion is uncontested. If the tentative ruling is uncontested, this CMC is vacated.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-02342
CASE NAME: JULIO CRUZ VS. CAMBRIDGE REAL ESTATE SERVICES, INC.
A MOTION FOR APPROVAL OF PAGA SETTLEMENT (SET BY THE COURTROOM)

FILED BY:

TENTATIVE RULING:

Summary

Plaintiffs Julio Andres Cruz and Alberto C. Cortez, as individuals, and on behalf of others similarly situated ("Plaintiffs") move for approval of Private Attorneys General Act ("PAGA") Settlement entered with Defendants Cambridge Real Estate Services, Inc. dba Cambridge Res, Inc. ("Defendants"). The Motion is **granted** as follows. No appearance is required at the hearing on August 12, 2026.

Background

This is a representative settlement of claims brought under the California Private Attorneys General Act ("PAGA") by Plaintiffs on behalf of the State of California against Defendants. The settlement resolves representative PAGA claims on behalf of all non-exempt employees who worked for Defendant in California during the period from August 25, 2021 through January 20, 2026 ("Aggrieved Employees"). The settlement expressly does not resolve or release any individual wage-and-hour claims of Plaintiffs or other employees.

Defendant has agreed to pay a non-reversionary Gross Settlement Amount ("GSA") of **\$460,733.00**.

The agreement also contains an escalator provision: if the number of covered pay periods exceeds 8,590 by more than 10%, Defendant must either proportionally increase the GSA (subject to the agreement's formula) or shorten the covered period to avoid triggering the escalator.

From the Gross Settlement Amount, Plaintiffs seek approval of the following deductions: (a) attorneys' fees of **\$153,562.31** (one-third of the GSA); (b) litigation costs of **\$14,200.00**; (c) representative service awards of **\$5,000.00** to each Plaintiff, for a total of **\$10,000.00**; and (d) settlement administration costs not to exceed **\$4,990.00**. The remaining balance constitutes the Net Settlement Amount ("NSA").

The NSA will be distributed pursuant to Labor Code section 2699 as applicable to this action: **75%** of the NSA will be paid to the California Labor and Workforce Development Agency (LWDA), and **25%** will be distributed among Aggrieved Employees on a pro rata basis according to the number of pay periods each employee worked during the covered period.

The settlement administrator, Apex Class Action, LLC, will mail notices and settlement payments to Aggrieved Employees in both English and Spanish within fifteen days after receipt of the settlement funds. Settlement checks will remain negotiable for 180 days. Any uncashed funds attributable to Aggrieved Employees will be transmitted to the California State Controller's Unclaimed Property Fund in the employee's name.

The settlement releases only representative PAGA claims for civil penalties arising from the Labor Code violations alleged or that reasonably could have been alleged based upon the operative PAGA notices and consolidated complaint. The release does not extend to employees' individual claims for damages or other personal relief. Because this is a PAGA representative action, Aggrieved Employees have no right to opt out of or object to the settlement.

Plaintiffs contend the settlement represents a substantial recovery in light of the litigation risks. They estimate the maximum potential PAGA exposure at approximately **\$859,000**, discounted to a realistic potential recovery of approximately **\$644,250** after accounting for disputed liability, proof issues, and the Court's discretion to reduce civil penalties under Labor Code section 2699(e)(2). The proposed GSA of **\$460,733.00** represents approximately **71.5%** of that discounted valuation.

Plaintiffs request an award of **\$153,562.31** in attorneys' fees, representing one-third of the Gross Settlement Amount. Counsel contend the request is reasonable under both the percentage-of-the-fund method and a lodestar cross-check. Counsel report collectively expending **353.7 hours**, generating a lodestar of approximately **\$460,607.40**, substantially exceeding the requested fee and resulting in a negative multiplier.

Plaintiffs also seek reimbursement of **\$14,200.00** in litigation costs, representing expenses incurred in prosecuting the action, with the majority attributable to mediation and related litigation activities. Plaintiffs assert these expenses were reasonably and necessarily incurred and are recoverable under the settlement agreement. Separately, Apex Class Action, LLC seeks approval of administration costs not to exceed **\$4,990.00** for performing notice, payment, calculation, address verification, LWDA payment, and related settlement administration services.

Finally, Plaintiffs request representative service awards of **\$5,000.00** each for Cruz and Cortez in

recognition of their service as PAGA representatives. Subject to approval of the requested fees, costs, service awards, and administration expenses, Plaintiffs request entry of an order approving the settlement as fair, reasonable, and adequate, and directing implementation of its terms.

Analysis

Settlements in PAGA cases must be approved by the court. (Labor Code § 2699(s)(2).) Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (Id., at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (Id., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. *Neary v. Regents of University of California* (1992) 3 Cal.4th 273. Nonetheless, the court should not approve an agreement contrary to law or public policy. *Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127. Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." *California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664. As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." *Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 46, 63.)

Application to this settlement

Plaintiffs claim that the settlement is fair and was evaluated by counsel based on adequate information and arms-length negotiation, which included the assistance of an experienced mediator, Hon. Brendon McKelvey (ret.). Counsel estimate that the maximum theoretical value for their penalty claims (not including "stacking"), was \$859,000 based on 8.590 pay periods. Of course, some reduction must be made for the strength of the case, and the time and expense of obtaining recovery. Even assuming success on the merits of each claim, PAGA gives the court discretion to reduce penalties for a variety of reasons, including where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory." (Labor Code, § 2699(e)(2).) These factors make the result hard to predict.

Labor Code section 2699(k)(1) provides that a prevailing employee in a PAGA action may recover attorney's fees. Plaintiffs seek \$153,562.31, or 33.3% of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id., at 505.) Although *Lafitte* concerns a class action, not a PAGA-only case, this Court views the use of a lodestar cross-check as appropriate here. Counsel's declaration have provided a lodestar estimate, which results in a negative implied multiplier. No adjustment is required.

The statute does not expressly address how the 25% plaintiff's share of the penalties is to be allocated among all of the aggrieved employees. (*Iskanian v. CLS Transp. Los Angeles, LLC* (2014) 59 Cal.4th 348, 382.) One court has held, however, that the entire 25% share of penalties could not be awarded to the plaintiff. (*Moorer v. Noble L.A. Events, Inc.* (2019) 32 Cal.App.5th 736, 742-743.) In *Moorer*, the plaintiff had a claim worth about \$9,500, yet was collecting penalties of \$148,000, and keeping the entire employee share, causing the court to be concerned that the plaintiff had lost sight of the fact that the purpose of the action is to benefit the public, not private parties. Allocation based on pay periods is reasonable here.

Costs of **\$14,200.00** are sought. This amount at first seems large but is largely attributable to the cost of private mediation. Given that professional private mediation generally is necessary to resolve these types of matters, the Court finds the expenses are reasonable and are approved. The administrator's costs of **\$4,990.00** are reasonable and are approved.

Ruling

1. The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on July 21, 2026 attaching a copy of this ruling. If there is a conflict in the proposed order and this ruling, the terms of this ruling shall prevail.
3. Counsel are ordered to obtain a compliance hearing date for from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to joint status report and declaration by the administrator at least nine court days before the compliance hearing date/
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on August 12, 2026.

6. 9:00 AM CASE NUMBER: C23-01650
CASE NAME: JASON BROERS VS. NAGINA PROPERTY MANAGEMENT LLC
FINAL APPROVAL - SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Jason Broers, individually and on behalf of the putative class, ("Plaintiff") move for final approval of the class action and PAGA settlement against Defendant Nagina Property Management, LLC ("Defendant"). This motion is **granted** as set forth herein. No appearance is required at the hearing on August 12, 2026.

Background

Defendant is in the business of the hotel industry and operates the Clarion Hotel Concord. Plaintiff was employed by Defendant from approximately November 2022 through January 2023 as a non-exempt, hourly employee. Plaintiff alleged that he was denied legally compliant meal and rest periods, minimum wages and overtime compensation, wage statements, and was not timely paid all wages upon his separation of employment. Throughout his employment, Plaintiff was subject to Defendant's written policies and procedures. Despite its meal and rest period policies, Plaintiff alleges that Defendant systematically prevented Plaintiff from being able to take his meal periods and rest breaks. Generally, Plaintiff alleges Defendant's failure to pay for all hours worked including overtime, furnish accurate itemized wages statements, pay all wages owed at termination, reimburse all necessary business expenses, unfair competition, provide compliant meal periods and rest breaks, and permit employees to inspect and receive records.

The Court finds that the parties have reached a settlement of the above-captioned class action and PAGA matter for a non-reversionary Gross Settlement Amount of \$300,000.00. This amount fully resolves all claims asserted by Plaintiff on behalf of himself and the approximately 166 class members who were employed by Defendant as non-exempt, hourly employees at the Clarion Hotel Concord, as well as the PAGA claims on behalf of aggrieved employees who worked for Defendant in California between February 1, 2021, and May 1, 2024.

The Gross Settlement Amount includes the following allocations: Class Counsel's attorneys' fees in the amount of **\$99,000.00** (representing thirty-three percent of the Gross Settlement Amount); Class Counsel's litigation costs of **\$11,498.40**; Settlement Administration costs of **\$7,000.00** to Simpluris, Inc.; a Class Representative Enhancement Payment of **\$20,000.00** to Plaintiff; and a PAGA Payment of \$7,500.00, of which \$5,625.00 (seventy-five percent) shall be paid to the California Labor and Workforce Development Agency and \$1,875.00 (twenty-five percent) shall be distributed to the aggrieved employees.

After the foregoing deductions, the remaining Net Settlement Amount shall be distributed to participating class members on a *pro rata* basis according to the number of qualifying work weeks each class member worked during the class period. The estimated average individual settlement payment is \$1,192.32, with the highest estimated payment being \$5,684.84.

The settlement was achieved following extensive informal discovery and analysis of time and payroll records, as well as a full-day mediation conducted before Bruce Friedman, Esq. The Settlement Administrator has completed the notice process. No class members objected to the settlement, requested exclusion, or submitted workweek disputes. The absence of objections and opt-outs supports the fairness and adequacy of the settlement.

Any settlement checks that remain uncashed 180 days after issuance shall be distributed to the Controller of the State of California to be held pursuant to the Unclaimed Property Law, California Civil Code §§ 1500 et seq., for the benefit of the class members and PAGA aggrieved employees entitled to those funds.

The Court finds that the settlement was reached through arm's-length negotiations by experienced counsel following sufficient investigation and discovery. The settlement is fair, reasonable, and adequate, and is hereby approved. The Court retains jurisdiction to consider entry of judgment and

enforcement of the settlement terms.

Analysis

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees \$99,000 relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel’s declaration indicates that while this case was handled on a contingency basis, his normal rate is \$550 per hour. The total amount billed on an hourly basis from all attorneys who worked on this case is \$130,551.00. This results in an imputed negative multiplier of .758, which means that Counsel’s proposed fee award is discounted by approximately 24.2% of the amount billed. The Court finds that the requested attorneys’ fees are reasonable in light of the contingency nature of the representation, the time and effort expended by Class Counsel, the skill required, the results obtained, and the substantial value delivered to the class members, aggrieved employees, and the State of California.

Litigation costs of \$11,498.40 are reasonable and are approved. Settlement administration costs of \$7,000 are reasonable and are approved. The requested representative payment of \$20,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that he assisted attorneys throughout the case, providing attorneys with documents and information concerning the case, and also describing policies, practices, and procedures of Defendant.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Plaintiffs' counsel is directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
5. No appearance is required at the hearing on August 12, 2026.

7. 9:00 AM CASE NUMBER: C23-02401

CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.

PRELIMINARY APPROVAL (SET BY THE COURTROOM)

FILED BY:

TENTATIVE RULING:

Summary

The Court **continues** the hearing on this Motion for Preliminary Approval to September 16, 2026 at 9:00 a.m. to allow for hearing on the Demurrer to the cross-complaint currently on calendar for August 26, 2026. No appearance is required at the August 12, 2026 hearing.

8. 9:00 AM CASE NUMBER: C23-02424

CASE NAME: DANIEL HOCOG VS. SERVICE MANAGEMENT SYSTEMS, INC.

FINAL APPROVAL OF THE SETTLEMENT

FILED BY:

TENTATIVE RULING:

Summary

Plaintiffs Daniel Thomas Atalig Hocog and Alfred Estrada Santos Jr. ("Plaintiffs") file this Motion for Final Approval of Class Action and PAGA Settlement against Defendant Service Management Systems, Inc ("Defendant"). The motion is **granted** as set forth herein. No appearance is required in person on August 12, 2026.

Background

Defendant is a business that provides housekeeping, maintenance, and consultant programs to

business customers throughout the County. Plaintiffs were nonexempt hourly employees who have claimed wage and hour violations and PAGA remedies.

The Court finds that Plaintiffs have presented a non-reversionary Gross Settlement Amount of **\$265,000.00**, which resolves the class and PAGA claims against Defendant. From the Gross Settlement Amount, the following allocations are requested: Class Counsel's attorneys' fees in the amount of **\$88,333.33** (one-third of the Gross Settlement Amount); reimbursement of litigation costs in the amount of **\$20,000.00**; Class Representative Service Payments of **\$5,000.00** to each named Plaintiff (Daniel Thomas Atalig Hocog and Alfred Estrada Santos Jr.), for a total of \$10,000.00; and settlement administration expenses of **\$8,800.00** to Apex Class Action Administration.

The Settlement also allocates \$40,000.00 from the Gross Settlement Amount as PAGA civil penalties, of which \$30,000.00 (seventy-five percent) shall be paid to the California Labor and Workforce Development Agency, and \$10,000.00 (twenty-five percent) shall be distributed to Aggrieved Employees based on the number of pay periods worked during the PAGA Period.

After the foregoing deductions, the Net Settlement Amount of approximately \$97,866.67 shall be distributed to the 320 Participating Class Members on a pro rata basis according to the number of workweeks each class member worked during the Class Period, resulting in an estimated average Individual Class Payment of \$305.83 and a highest estimated payment of \$1,749.29.

The Settlement Administrator has calculated a total of 13,595 workweeks in the Class Period. Aggrieved Employees shall receive an estimated average Individual PAGA Payment of \$72.46, with the highest estimated payment being \$235.58.

No Class Members have objected to the Settlement, requested exclusion, or submitted workweek disputes. The absence of objections and opt-outs supports the fairness and adequacy of the Settlement.

Analysis

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy.

(*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, \$83,333.33, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Counsel’s declaration indicates that while this case was handled on a contingency basis, normal rates charged by the firm are between \$600- \$1500 per hour. The total amount billed on an hourly basis from all attorneys who worked on this case is \$125,975. This results in an imputed negative multiplier of .70, which means that Counsel’s proposed fee award is discounted by approximately 23% of the amount billed. The Court finds that the requested attorneys’ fees are reasonable in light of the contingency nature of the representation, the time and effort expended by Class Counsel, the skill required, the results obtained, and the substantial value delivered to the class members, aggrieved employees, and the State of California.

Litigation costs of \$20,000 are reasonable and are approved. Settlement administration costs of \$8,800 are reasonable and are approved. The requested representative payment of \$5,000 for each named plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff Hocog attests that he assisted attorneys throughout the case, providing attorneys with documents and information concerning the case, spending approximately 40-45 hours, and also describing policies, practices, and procedures of Defendant.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. Plaintiffs’ counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

5. No appearance is required at the hearing on August 12, 2026.

9. 9:00 AM CASE NUMBER: C24-01704

CASE NAME: RAMY EDEN VS. AU ENERGY, LLC

ENTRY OF CONSENT JUDGMENT

FILED BY: EDEN, RAMY KAUFLE

TENTATIVE RULING:

Summary

On March 6, 2026, Plaintiff Ramy Eden ("Plaintiff") filed an unopposed Motion for Entry of Consent Judgment seeking approval of the parties' Stipulated Consent Judgment against Defendant AU Energy, LLC ("Defendant"). The motion is **granted**. No appearance is required at the hearing on August 12, 2026.

Background

This action was brought pursuant to California Health and Safety Code section 25249.5 et seq. ("Proposition 65") alleging that Defendant violated Proposition 65 by exposing individuals to unleaded gasoline vapors at its service stations located at 3621 San Pablo Dam Road, El Sobrante, California and 2876 El Portal Drive, San Pablo, California without providing clear and reasonable warnings as required by law. Following arm's length negotiations between parties separately represented by counsel, the parties reached a settlement that resolves all claims in this action. The settlement requires Defendant to provide compliant warnings at the subject stations, pay a civil penalty as a deterrent to future violations, and pay Plaintiff's reasonable attorneys' fees and costs.

The motion was duly served upon the California Attorney General and Defendant's counsel, with the hearing noticed for August 12, 2026, which is more than forty-five days after service upon the Attorney General as required by California Code of Regulations title 11, section 3008. As of the filing of the Declaration of Compliance, neither Defendant, the Attorney General, nor any other party has filed opposition to the motion or objection to the stipulated settlement. Plaintiff has further advised the Court, pursuant to section 3008(a)(2) of Title 11 of the California Code of Regulations, that the Attorney General's failure to comment shall not be construed as endorsement of or concurrence in the settlement.

Analysis

The Court finds that the settlement complies with all statutory requirements set forth in Health and Safety Code section 25249.7, subdivision (f)(4). The warning provisions satisfy Proposition 65's mandate for "clear and reasonable" warnings prior to exposure to known carcinogens. The civil penalty amount is reasonable based upon the criteria set forth in Health and Safety Code section 25249.7(b)(2).

The award of \$15,000 in attorneys' fees and costs is reasonable under California law and authorized pursuant to Health and Safety Code sections 25249.7(b) and 25249.12(c)(1) and Code of Civil Procedure section 1021.5.

Voluntary conciliation and settlement are the preferred means of dispute resolution, reducing the

expense and persistency of litigation while promoting peace and goodwill in the community. The settlement serves the public interest by ensuring that California consumers receive proper warnings about exposure to gasoline, a chemical listed by the State as known to cause cancer, thereby fulfilling the animating purpose of Proposition 65: to protect the people of California against carcinogenic chemicals and to inform them about exposures to such chemicals. The settlement is fair, reasonable, and in the interest of the public. Accordingly, the Court finds good cause to approve the settlement and enter and judgment entered in accordance with its terms.

Ruling

1. The Motion is **granted**.
2. The Court will execute the proposed order and judgment lodged on March 6, 2026.
3. Plaintiff's Counsel is directed to enter the judgment.
4. No appearance is required at the August 12, 2026 hearing.

10. 9:00 AM CASE NUMBER: C24-03401
CASE NAME: RAYMOND TENORIO VS. FORD MOTOR COMPANY
BE RELIEVED AS COUNSEL RE: HILLARY JOHNS
FILED BY: MODVANS , INC.

TENTATIVE RULING:

Summary

Counsel Hillary Johns Trial Lawyer by and through Hillary Johns, Esq. ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Defendant Modvans, Inc. ("Modvans"). The Motion is **granted** as set forth herein. No appearance is required provided that Counsel abides by the Court's orders below.

Background

In this case, Plaintiff Raymond Tenorio alleges a breach of warranty among other theories, against Defendant Ford Motor Company and Modvans. The trial is set for January 4, 2027, and an issue conference is calendared for December 11, 2026.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. The Court acknowledges that the prejudice to Modvans is minimal, as there is ample time for Modvans to retain trial counsel. Modvans is a corporation and must retain counsel.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing

the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on April 27, 2026. The withdrawal is effective immediately.
3. Withdrawing Counsel is ordered to serve a copy of the Order (MC-053) to Modvans by mail at its last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court. Counsel is also ordered to serve a copy of the Order to her client contact at Modvans.
4. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).
5. No appearance is required at the hearing on August 12, 2026.

11. 9:00 AM CASE NUMBER: C25-00150

CASE NAME: SABRINA BEISNER VS. BRIAN DOYLE

2ND AMENDED COMPLAINT

FILED BY: DOYLE, BRIAN

TENTATIVE RULING:

Introduction

Before the Court is all the captioned Defendants' Demurrers and Motions to Strike. The Demurrers and Motions to Strike relate to Plaintiff's SAC for seven causes of action for employment-related claims revolving around sexual batter and negligence filed on January 26, 2026.

For the following reasons, **Defendants' Demurrer is sustained in part and overruled in part. The Demurrer is sustained without leave to amend for the third, fourth, fifth, and sixth cause of actions as to Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.**

The Demurrer is overruled as to battery, and sexual battery causes of action against Defendant McMichael. The Demurrer is sustained without leave to amend for the general negligence and NIED causes of actions against Defendants Spencer and McMichael. The Demurrer is overruled for the fifth cause of action for IIED is against Defendant McMichael.

Meet and Confer Requirement

Defendants satisfied their meet and confer requirement regarding their Demurrers and Motions to Strike in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Michael W. Feenberg. Defendants' Counsel transmitted a meet and confer letter to Plaintiff's counsel on February 17, 2026. (Feenberg Decl. at ¶ 2.) On February 25, 2026, counsel for Plaintiff and counsel for Defendant participated in a telephonic meet and confer conference regarding the issues raised in this demurrer. (*Id.*) The parties did not reach an agreement to resolve the objections raised in this demurer. (*Id.*)

Statement of Facts

Plaintiff was employed by Party Pros beginning in 2012, when she was a minor. (SAC ¶ 11.) At some

point during her employment with Party Pros, Defendant Spencer engaged in "harmful and offensive touching and explicit sexual conduct" with Plaintiff. (SAC ¶ 19.) After Plaintiff reported Spencer's misconduct to Defendant McMichael, Plaintiff was removed from events with Spencer. (SAC ¶¶ 46-49.) McMichael then took Plaintiff on work events and provided her with alcohol. (Id.) At some point while Plaintiff was still a minor, Plaintiff entered into a romantic relationship with McMichael. (SAC ¶¶ 51-52.) The relationship persisted after Plaintiff reached the age of majority. (2L) At some point, the relationship ended, and Plaintiff obtained a restraining order against McMichael due to his alleged harassment and threats against her. (SAC ¶ 53.) In November 2024, Plaintiff reported Spencer's conduct to Party Pros during a meeting where she reported Spencer's unsolicited sexual advances and sexual assaults to her supervisors. (SAC ¶¶ 51-60.) In response, Party Pros did not sever ties with Spencer. (SAC ¶ 61.) Plaintiff experienced severe emotional distress due to Spencer's sexual assaults, McMichael's improper relationship with her, and struggled with substance abuse as a result. (SAC ¶ 67.)

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Applicability of Workers' Compensation Exclusivity Exceptions

Defendants argue that all of Plaintiff's claims are preempted by the workers' compensation exclusivity doctrine. Workers' compensation provides the exclusive remedies for an employee's claims where the alleged wrongful conduct occurs at the worksite, in the normal course of the employer/employee relationship. (*Miklosy v. Regents of the University of California* (2008) 44 Cal. 4th 876, 902 ["Even if such conduct may be characterized as intentional, unfair or outrageous, it is nevertheless covered by the workers' compensation exclusivity provisions."].) However, there are exceptions.

Civil actions are allowed where it is alleged the work-related injury was concealed, worsening the injury to the claimant or Plaintiff, in which case the employer's liability shall be limited to those damages proximately caused by the aggravation. (*Johns-Manville Products Corp. v. Superior Court* (1980) 27 Cal.3d 465, 469; *See also* Lab. Code § 3602(b)(2).) Labor Code section 3602(b)(1) provides that civil actions are permitted where the employer commits or ratifies a willful physical assault.

The Complaint Alleges Injuries in the Scope of Plaintiff's Employment

Plaintiff takes the stance that that in order for Defendants to argue that Workers Compensation is the sole remedy of the employee against her employer, Defendants would need to first show worker's compensation coverage was available and that Plaintiff's claims were accepted and that these predicate evidentiary requirements are substantive factual matters that have nothing to do with pleading challenges. Plaintiff fails to consider that the SAC specifically alleges that the injuries occurred during the scope of her employment.

"Specifically, this grooming process included Defendant TYRONE SPENCER taking Plaintiff to work events between 2013 and 2015, including events she was not assigned to work. For these events for which she was not assigned, Defendant TYRONE SPENCER offered to give Plaintiff extra individual teaching time and attention as an incentive to make her come to these events alone with him." (SAC ¶ 16.)

When a complaint affirmatively alleges facts indicating coverage by workers' compensation laws but fails to state additional facts negating the application of the exclusive remedy rule, no civil action will lie and the complaint is subject to a general demurrer. (*Hughes v. Western MacArthur Co.* (1987) 192 Cal.App.3d 951, 957.) This pleading requirement is jurisdictionally based; if the complaint indicates that the action is within the scope of the workers' compensation law, the superior court has no jurisdiction over it unless additional allegations indicate that an exception to the exclusive remedy rule applies. (See *Deauville v. Hall* (1961) 188 Cal.App.2d 535, 540.)

Exceptions Argued

Here, Plaintiff takes the position that the, "SAC lays out how the Defendants committed or ratified the willful physical assaults and worsened Plaintiff's damages by concealing her injury. Plaintiff has alleged that Defendants knew of Defendants McMichael and Spencer's propensity for harmful conduct at the time of hire, and throughout Plaintiff's employment, including after she reported her abuse twice to her employers in 2015 and then again in 2024. (SAC, ¶12-14; 46,54-63, 64 67.)" (Opposition at p. 5: 4-9.)

Plaintiff argues she has alleged that Defendant Tyrone Spencer took the minor Plaintiff along to work events to provide her with alcohol and then sexually assaulted her, that Defendant Patrick McMichael sexually assaulted the minor Plaintiff under the false auspices of training and protecting her after she reported Mr. Spencer's misconduct, that the Doyle Defendants and corporate Defendants had actual and constructive knowledge at the time of hire and after Plaintiff reported her sexual abuse in 2015 and 2024, and that they failed to protect Plaintiff and other female employees by refusing to take appropriate action. (Opposition at p. 5: 21-28.)

Ratification Willful Physical Assault

Workers' compensation exclusivity bars claims against an employer based on vicarious liability unless the employer "ratified the assault". (*Hart v. National Mortgage & Land Co.* (1987) 189 Cal.App.3d 1420, 1432.) To support employer liability under a theory of ratification a plaintiff must show that the employer has failed to investigate or respond to charges that an employee committed an intentional tort. (*Baptist v. Robinson* (2006) 143 Cal.App.4th 151, 169.)

Defendant argues that no facts in the SAC allege that that any Defendants ratified the alleged assaults made by Defendants Spencer and McMichael. (Reply at pp. 3-4.)

Plaintiff pleads that she disclosed misconduct to her employers once in 2015 and once in 2024. In 2015, Plaintiff alleges that she disclosed Spencer's misconduct only to McMichael. As a result, McMichael removed Plaintiff from events with Spencer. (SAC ¶ 44 ["The occurrences with Defendant Tyrone Spencer only stopped after Plaintiff reported Tyrone Spencer's unwanted sexual acts to Defendant Patrick McMichael"].)

Plaintiff alleges that on November 12, 2024, Plaintiff reported her history of sexual abuse to her employers, Defendants The Party Pros Disc Jockey And Event Services, Inc.; Denon & Doyle; and Party Pros during a meeting with Denon and Doyle employees Brian and Sue Doyle, Tyrone Spencer, Dan Ohrman, partner Kevin Sharp, and Megan Rumsey, where Plaintiff described her history of sexual abuse both in and outside of the scope and course of her employment. (SAC ¶ 58.)

Neither the 2015 reporting to McMichael or the 2024 reporting to the company employees allege facts that show Plaintiff's employer failed to investigate or respond to charges that an employee committed an intentional tort. This exception does not apply to Defendants Party Pros, Denon & Doyle and the individual Doyle Defendants. Thus, the Demurrer is sustained for the third, fourth, fifth, and sixth cause of actions as to Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.

Fraudulent Concealment

An exception exists "[w]here the employee's injury is aggravated by the employer's fraudulent concealment of the existence of the injury and its connection with the employment" (Lab. Code § 3602 (b)(2).)

To withstand a demurrer, an employee must "in general terms" plead facts that if found true by the trier of fact, establish the existence of three essential elements: (1) the employer knew that the plaintiff had suffered a work-related injury; (2) the employer concealed that knowledge from the plaintiff; and (3) the injury was aggravated as a result of such concealment. (*Jimenez v. Gooch's Natural Food Mkts.* (2023) 95 Cal.App.5th 645, 658.) "If any one of these conditions is lacking, the exception does not apply and the employer is entitled to judgment in its favor." (*Silas v. Arden* (2012) 213 Cal.App.4th 75, 91.)

Critically for our purposes, "[t]he exception does not apply where the employee was aware of the injury at all times." (*Silas v. Arden, supra*, 213 Cal.App.4th at p. 91.) This point is fatal. The SAC does not allege that the decedent was unaware of her injury. Nor could it reasonably do so—the nature of the sexual assault and battery injuries pled were of the kind that Plaintiff knew of them as they were happening. (SAC ¶¶ 24-53.) The allegations of the SAC establish that the fraudulent concealment exception to the workers' compensation exclusivity rule does not apply as a matter of law.

Thus, the Demurrer is sustained without leave to amend for the third, fourth, fifth, and sixth cause of actions as to Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.

Plaintiff's Battery and Sexual Battery Claims against Defendant McMichael

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in

plaintiff's position would have been offended by the touching." (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.)

A cause of action for sexual battery under Civil Code section 1708.5 requires the batterer intend to cause a "harmful or offensive" contact and the batteree suffer a "sexually offensive contact." The statute further defines "intimate part" as "the sexual organ, anus, groin, or buttocks of any person, or the breast of a female." (Civ. Code § 1708.5(d)(1).) Moreover, the section is interpreted to require that the batteree did not consent to the contact." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1225.)

The previous demurrer was sustained for providing only conclusory statements of assault and harassment. (See previous order.) Plaintiff has increased the operative complaint by 10 pages to include more detailed allegations for the batter and sexual battery cause of actions. Defendants argue that Plaintiff's allegation that McMichael "engaged in sexual intercourse and penetration with Plaintiff(SAC ¶ 51) does not state a claim for battery or sexual battery, because Plaintiff does not allege any "harmful or offensive contact" in connection with this occurrence. However, the SAC does allege that Defendant McMichael intentionally exposed Plaintiff to further sexually offensive contact by engaging in the same egregious conduct that Defendant Spencer did. (SAC ¶ 48.) This will suffice to withstand an attack on the pleadings.

The Demurrer is overruled as to battery, and sexual battery causes of action against Defendant McMichael.

General Negligence and NIED Against Defendants Spencer and McMichael

The third cause of action for general negligence and the sixth cause of action for NIED is against all Defendants. (SAC ¶¶ 81, 108.)

As analyzed above, the Demurrer was sustained as to for the third, fourth, fifth, and sixth cause of actions as to Defendants Party Pros, Denon & Doyle and the individual Doyle Defendants for lack of ratification.

The allegations of the general negligence cause of action are pointed at the conduct of Defendants Party Pros and Denon & Doyle's failure to manage and supervise Defendants Spencer and McMichael and to prevent Plaintiff from harm. (SAC ¶¶ 81-87.) Plaintiff does not allege any negligent acts on behalf of Defendants Spencer or McMichael. (Id.) This was true of the FAC as well. (FAC ¶¶ 35-41.) All the allegations against Defendants Spencer or McMichael are for their intentional actions. The Demurrer is sustained without leave to amend for the general negligence and negligent infliction of emotional distress causes of actions against Defendants Spencer and McMichael.

IIED

The fifth cause of action for IIED is against all Defendants. (SAC ¶ 81.)

As analyzed above, the Demurrer was sustained as to for the third, fourth, fifth, and sixth cause of actions as to Defendants Party Pros, Denon & Doyle and the individual Doyle Defendants for lack of ratification.

Defendant demurs to the IIED cause of action. The elements of an IIED cause of action are: (1) extreme and outrageous conduct by the defendant; (2) intention to cause or reckless disregard of the

probability of causing emotional distress; (3) severe emotional suffering; and (4) actual and proximate causation of the emotional distress. (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 780.) To satisfy the element of extreme and outrageous conduct, defendant's conduct "must be so extreme as to exceed all bounds of that usually tolerated in a civilized society." (Id. at 780.) Defendants argue that Plaintiff has not alleged facts from which extreme and outrageous conduct may be inferred as to Defendant McMichael. (Demurrer at p. 20: 9-14; Reply at p. 8: 19-22.) The SAC alleges Defendant McMichael had sexual offensive contact with Plaintiff including sexual intercourse while being aware Plaintiff was a minor. (SAC ¶¶ 13, 48-51.) These allegations add up to enough facts to plead the Defendant McMichael's conduct was so extreme as to exceed all bounds of that usually tolerated in a civilized society.

The Demurrer is overruled for the fifth cause of action for IIED is against Defendant McMichael.

Conclusion

For the reasons analyzed above, **Defendants' Demurrer is sustained in part and overruled in part. The Demurrer is sustained without leave to amend for the third, fourth, fifth, and sixth cause of actions as to Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.**

The Demurrer is overruled as to battery, and sexual battery causes of action against Defendant McMichael.

The Demurrer is sustained without leave to amend for the general negligence and NIED causes of actions against Defendants Spencer and McMichael.

The Demurrer is overruled for the fifth cause of action for IIED is against Defendant McMichael.

12. 9:00 AM CASE NUMBER: C25-00150
CASE NAME: SABRINA BEISNER VS. BRIAN DOYLE
STRIKE PORTIONS OF 2ND AMENDED COMPLAINT
FILED BY: DOYLE, BRIAN
TENTATIVE RULING:

Introduction

Defendants The Party Pros Disc Jockey and Event Services, Inc., a California corporation. doing business as Denon & Doyle (also sued incorrectly herein as Denon & Doyle, and Party pros) (defined herein as the "Company" or "Party Pros"); Tyrone Spencer, an individual; Brian Doyle, an individual; Susan Doyle, an individual; and Patrick McMichael, an individual (collectively, Defendants) move the court for an order striking the following allegations from Plaintiff s Second Amended Complaint ("SAC"):

1. Paragraphs 73 and 80 seeking punitive damages as against defendant McMichael.
2. Paragraphs 87 seeking punitive damages as against all defendants.
3. Paragraph 102 seeking punitive damages as against Party Pros.
4. Paragraph 107 seeking punitive damages against defendants McMichael, Brian and

Susan Doyle. and Party Pros.

5. Paragraph 111 seeking punitive damages against all defendants.

6. The request for punitive damages made at item 3 in the prayer for relief.

As explained below, **Defendants' Motion to Strike is granted in part and denied in part. The Court grants all requests to strike punitive damage allegations against Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants, and denies all requests to strike punitive damages against Defendants Spencer and McMichael.**

Legal Standard

A court's determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion, as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on "extrinsic evidence showing that the allegations are 'false' or 'sham.' Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable." (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶17:168 (TRG 2023).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section 436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure section 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Effect of the Demurrer Ruling

The only causes of actions surviving Demurrer are the sexual battery, battery, and IIED claims against Defendants Spencer and McMichael. Thus, the Court grants all requests to strike punitive damage allegations against Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants.

Punitive Damages

Civil Code section 3294, which requires clear and convincing evidence that a defendant acted "willfully, maliciously, oppressively, and despicably" or with a conscious disregard of Plaintiff's rights.

Punitive damages, as set forth in the Civil Code section 3294(a), require that "the defendant [is] guilty of oppression, fraud, or malice." "Because punitive damages are imposed 'for the sake of example and by way of punishing the defendant,' they are typically awarded for intentional torts such as assault and battery ... intentional infliction of emotional distress ... nuisance intentionally maintained, [and] fraud" (*Lackner v. North* (2006) 135 Cal. App. 4th 1188, 1212, citing Civil Code 3294(a).)

The Court ruled that Plaintiff has successfully alleged batter, sexual battery, and IIED against Defendants Spencer and McMichael. Since all the successful causes of actions are intentional torts, the Court denies all requests to strike punitive damages against Defendants Spencer and McMichael.

Conclusion

For the reasons analyzed above, **Defendants' Motion to Strike is granted with leave to amend. The Court grants all requests to strike punitive damage allegations against Defendants The Party Pros Disc Jockey And Event Services, Inc., Party Pros, Denon & Doyle and the individual Doyle Defendants, and denies all requests to strike punitive damages against Defendants Spencer and McMichael.**

13. 9:00 AM CASE NUMBER: C25-00893

CASE NAME: JESSE DAVIS VS. KATHRYNE DANIELS

FILED BY PLAINTIFF

FILED BY:

TENTATIVE RULING:

Plaintiff Jesse Davis's Motion for Summary Judgment is **denied**.

Background

This is a breach of contract action arising from a dispute between Plaintiff Jesse Davis and his mother, Defendant Kathryne A. Daniels, over real property located at 2440 Orchard Lane, Martinez (the Property). Plaintiff alleges that in 2011, the parties entered into a contract under which Plaintiff would repay Defendant \$35,000 and make mortgage-related payments over time in exchange for title to the Property. Plaintiff alleges Defendant breached this agreement by instead transferring title into her own trust, and later, in August 2025, conveying title to Plaintiff subject to the "unilateral condition" that property transfer represented the entirety of his inheritance and that he would receive no further distributions from Defendant's trust. Plaintiff seeks summary judgment in his favor for damages of approximately \$500,000, based on the current market value of the Property. (See Declaration of Plaintiff Jesse Davis filed on May 20, 2026.) Plaintiff's theory appears to be that he is entitled to keep the Property and separately recover its market value in damages, effectively seeking both the house and the equivalent of a further inheritance distribution he claims he was promised.

Defendant opposes the motion, arguing that no enforceable contract ever existed, that she never signed or agreed to the terms reflected in Plaintiff's Exhibit A; and that, in any event, she has already conveyed title to the Property to Plaintiff via grant deed dated August 27, 2025.

Discussion

As a threshold matter, Plaintiff's submissions in support of this motion were handwritten and, in significant part, difficult to read. The Court does not require Plaintiff to use a computer. However, all papers submitted to the Court must be legible. Future filings may be disregarded to the extent the Court cannot determine their contents.

Where a plaintiff seeks summary judgment, the burden is to produce admissible evidence on each

element of a cause of action entitling him or her to judgment. (Code Civ. Proc. § 437c (p)(1); *S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.* (2010) 186 Cal.App.4th 383, 388.) If plaintiff meets this initial burden, the burden then shifts to the defendant "to show that a triable issue of one or more material facts exists as to that cause of action." (Code Civ. Proc. § 437c(p)(1).) In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn from it, and must view such evidence and inferences in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

To prove a claim for breach of contract, a plaintiff must prove the following elements: (1) the existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach. (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1230.)

A plaintiff moving for summary judgment on a breach of contract cause of action must submit admissible evidence sufficient to establish each of these elements. As relevant here, Plaintiff's evidence must be sufficient to establish the existence of the contract. Plaintiff claims that Exhibit A to the Declaration of Jesse Davis, filed on May 20, 2026 in support of the motion, constitutes the contract between the parties. Exhibit A, which is difficult to read, appears to state:

I Jesse Davis and Harmony Barry agree to repay Kathrynne Daniels back \$35,000 as a down payment on a \$106,000 home at 2440 Orchard Ln, Martinez, CA 94553. The mortgage [illegible] property tax and maintenance appliances plumbing, heat etc. After 35k has been deposited over time, lender will put the house solely in the borrower's name or name them as beneficiaries "Jesse" [illegible] and with Harmony as wife. 35K without interest as a loan gift for the upcoming wedding 6/26/11[.]

Thanks Ma!
Your [sic] the best!

The document purports to be dated April 11, 2011, and purports to bear the signatures of Kathrynne Daniels, Jesse Davis, and Harmony Barry. The document bears the written notation, made by Plaintiff, presumably, "Contract signed by defence [sic]."

Exhibit A does not say what Plaintiff claims it says. In particular, the document says nothing about Plaintiff retaining any future inheritance, or about Defendant preserving or guaranteeing such an inheritance. But even assuming Exhibit A said what Plaintiff claims it does and the burden shifted, Defendant's evidence in opposition to the motion is sufficient to raise a triable issue of fact.

Defendant submits a declaration in which she states she never signed Exhibit A as a contract for the sale or transfer of the Property, and never agreed, in that form or anything like it, to transfer title in exchange for \$35,000, mortgage payments, rent payments, or anything else. (Declaration of Kathrynne A. Daniels filed June 22, 2026, ¶ 7.) Defendant did not agree, in Exhibit A or any other writing, that the transfer of the Subject Property would preserve, guarantee, replace, or measure any future inheritance to Plaintiff, nor did she agree that the market value of the property would measure

damages for any alleged breach. (Daniels Decl., ¶ 9.) Defendant's supplemental declaration filed August 4, 2026 further states that the signature page on Plaintiff's Exhibit A is identical to the signature page of an April 5, 2011 lease agreement between the parties, which Defendant located and attached as Exhibit 1. (Supp. Daniels Decl., ¶¶ 3–4.) At the time Defendant signed that page, it contained only the signature lines for herself and Plaintiff, with none of the handwritten language now appearing above the signatures on Exhibit A. (Supp. Daniels Decl., ¶ 5.) Defendant never authorized anyone to add that language after she signed, and states she would not have signed the document had those terms been present. (Supp. Daniels Decl., ¶¶ 8, 10.) Based on this evidence, Defendant contends that Exhibit A appears to have been altered after execution, with the handwritten terms Plaintiff relies on added to a signature page taken from an unrelated lease agreement.

In his reply, Plaintiff argues that the existence of the contract is proven by the parties' objective conduct. He emphasizes that Defendant executed a "multi-step transaction" to remove the Property from her trust and deed the property to Plaintiff in August 2025. He argues that the parties' course of performance is the most reliable evidence of the contract's existence and asks why Defendant would have deeded him the Property if no contract existed. He points to an August 27, 2025 letter from Defendant's counsel, in which counsel characterizes the Property and transfer as constituting "the entirety of your inheritance" and stating that Plaintiff would receive "no further distribution" from Defendant's trust, appearing to argue that if Defendant's lawyer characterized the Property as his inheritance, this is an admission that Defendant always intended to give the Property to him as part of his inheritance.

These arguments do not persuade the Court that the motion should be granted. In ruling on a motion for summary judgment, courts must "liberally construe the evidence in support of the party opposing summary judgment and resolve all doubts concerning the evidence in favor of that party." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037.) Only when the inferences are indisputable may the court decide the issues as a matter of law. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840.) Critically, "the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true." (*Ibid.*) Where, as here, the parties offer conflicting accounts of the significance and meaning of their past conduct, such disputes cannot be resolved on summary judgment.

Because the Court finds Defendant's evidence sufficient to raise a triable issue of fact whether a contract exists, summary judgment must be denied. Moreover, as this issue is dispositive, the Court need not consider the remaining arguments of the parties, including those concerning service of the summary judgment motion.

Disposition

Based on the foregoing, Plaintiff's motion for summary judgment is **denied**.

14. 9:00 AM CASE NUMBER: C25-02151
CASE NAME: JUSTIN MIDYETT VS. PACIFIC GAS AND ELECTRIC COMPANY
STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT
FILED BY: PACIFIC GAS AND ELECTRIC COMPANY
TENTATIVE RULING:

Before the Court is Defendant Pacific Gas and Electric Company Motion to Strike Plaintiff's First Amended Complaint. While entitled a motion to strike the entire FAC, Defendant PG&E only seeks to strike allegations in the Complaint relating to Plaintiffs' claims for punitive damages and allegations allegedly supporting that request.

Defendant's Motion is **granted** as outlined below.

Procedural Background

Plaintiff filed his complaint on July 29, 2025, alleging four causes of action: (1) disability discrimination; (2) retaliation; (3) harassment based on disability; and (4) waiting time penalty for nonpayment of wages. Defendant moved to strike Plaintiff's request for punitive damages. That motion was granted and Plaintiff was given leave to amend.

Plaintiff filed the First Amended Complaint on February 4, 2026. The FAC asserts the same four causes of action and seeks punitive damages. Defendant again seeks to strike the allegations related to the request for punitive damages.

Summary of Allegations

Plaintiff commenced working for PG&E as a Traffic Control Flagger on September 11, 2023. (¶ 9.) On June 15, 2024, he was struck by a vehicle while at work at a PG&E job site in Lafayette, California. (¶ 10.) He promptly reported his injury to his supervisor. (¶ 11.) His supervisor told him the injury would be a big problem since he was on probation. (*Ibid.*) He also instructed Plaintiff to obtain a police report regarding the incident. (¶ 12.)

About a week later, Plaintiff was limping at work. (¶ 13.) Toward the end of the day a supervisor asked about the police report. (*Ibid.*) Plaintiff said he was having difficulty getting it. (*Ibid.*) The supervisor said he thought Plaintiff wasn't going to make an issue about the injury – to which Plaintiff responded he wasn't going to say anything and returned to work. (*Ibid.*)

Plaintiff also alleges that he was told he was being deceitful when he intentionally under-reported his work hours. (¶ 14.) When he returned to work, he was told to wait for an ergonomic specialist and then to call the Emergency Nurse Hotline. (¶ 15.) When he asked his supervisor what he should say to the nurse, he was "curtly told to tell her how he was feeling." (*Ibid.*) After explaining his injuries he was put on Workers Compensation and was placed on modified duties. (¶ 16.)

Plaintiff then claims he was subject to a pattern of retaliation and mistreatment "including being marked as "No Call, No Show" despite being present; being forced to revise incident reports to benefit management; being placed under unreasonable restrictions post-injury; facing false rumors about dishonesty spread throughout his workplace." (¶ 17.) He told his supervisor that he felt he was being harassed and was told to report it to HR. (¶ 18.)

On August 20, 2024, Plaintiff awoke with pain in his injured foot, so he texted his supervisor. (¶ 19.) He did not receive a response. (*Ibid.*) He was terminated that same day. (*Ibid.*) Plaintiff indicated he

would pick up his check the next day but was unable to. (¶ 20.) As such, his supervisor mailed the check, which Plaintiff received on September 11, 2024. (¶ 21.)

Standard of Review

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. (“CCP”) § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 [“matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

Analysis

California Civil Code section 3294 sets forth the standard for allowing punitive damages to be maintained against a corporate employer:

An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation. (Civ. Code § 3294(b).)

The “law does not impute every employee’s malice to the corporation.” (*Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167.) “Instead, the punitive damage statute requires proof of malice among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (*Ibid.* quoting Cal. Code Civ. Proc. § 3294, subd. (d).) A ‘managing agent’ is an employee “who ‘exercise[s] substantial discretionary authority over decisions that ultimately determine *corporate policy*.’” (*Ibid.* italics in original.)

‘Corporate policy’ is “the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations.” (*Ibid.*) “A ‘managing agent’ is one with substantial authority over decisions that set these general principles and rules.” (*Id.* at 167-68.)

As noted by Defendants, in this Court’s earlier ruling on Defendant’s motion to strike, the Court found that the Complaint contained “several general allegations regarding actions taken by an unnamed ‘supervisor’ with relation to Plaintiff.” The Court went on to explain, however, that:

Nowhere in the complaint are there any factual allegations describing this supervisor’s duties or responsibilities. There is no indication that s/he exercised any control over corporate policy. There are no facts showing that s/he had any control over Plaintiff’s employment. In other words, none of the key facts outlined in [*Colucci v. T-Mobile USA, Inc.* (2020) 48 Cal.App.5th 442] are present in Plaintiff’s complaint.

The FAC now generally alleges that Plaintiff’s supervisor “was a director, officer, and/or managing agent of Defendant,” and that the that the alleged retaliation, mistreatment, and termination of

Plaintiff was “done at the behest of an officer, director, and/or managing agent.” (¶ 11, 17, 19.) There are additional general allegations that the actions taken were “authorized, ratified, and carried out by officers, directors, and/or managing agents of Defendants....” (See e.g. ¶¶ 22, 27, 32, 38.)

There are no **facts**, however, that describe any of these people, what their responsibilities were, or supporting the claim that they had ‘substantial authority over decisions that ultimately determine corporate policy.’ Here, Plaintiff merely copies the wording of section 3294 without providing any factual allegations to support the contention that the people were officers, directors, and/or managing agents of Defendant.

The mere allegation that an officer, director, or managing agent was aware of the conduct is not sufficient to allege punitive damages. “Pleading in the language of the statute is acceptable **provided that sufficient facts are pleaded to support the allegations**. [Citation omitted.] The terms themselves are conclusory, however. [Emphasis added.]” (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

Plaintiff fails to allege any facts regarding the person(s) who acted as managing agent(s) on behalf of Defendant, as well as any facts regarding whether said agent(s) acted with the requisite knowledge and in the requisite manner to support Defendant’s liability for punitive damages as a corporate employer. There are no allegations showing that any person of sufficient authority had any knowledge of the incidents outlined in the FAC. Plaintiff’s allegation that an ‘officer, director, and/or managing agent’ ‘authorized, ratified, or carried out’ the actions complaint of – without any additional **factual** allegations that would allow Defendants to determine who potentially opened it up to a claim for punitive damages is insufficient.

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (*Clauson v. Superior Court* (1998) 67 Cal. App. 4th 1253, 1255.) Conclusory allegations, devoid of any factual assertions, are insufficient. (See e.g. *Smith v. Sup. Ct.* (1992) 10 Cal. App. 4th 1033, 1042.)

Leave to Amend

“[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.) A trial court does not abuse its discretion in denying leave to amend when the moving party “merely stated in its opposition to [the] demurrer [or motion to strike] that ‘if the Court finds the operative complaint deficient, Plaintiff respectfully requests leave to amend....’” (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

Plaintiff has already been given leave to amend once. This time around, Plaintiff does not explain how he can amend to address the deficiencies. Instead, in his Opposition he merely states: “Plaintiff respectfully requests that Plaintiff be granted leave to amend.” Leave to amend is denied.

Conclusion

Defendant’s motion to strike is **granted** without leave to amend. If during discovery Plaintiff uncovers additional facts which would support a claim for punitive damages against Defendant corporation, Plaintiff may seek leave to amend at that time.

15. 9:00 AM CASE NUMBER: C25-03107
CASE NAME: RENE MACHADO VS. VALUE PLUMBING CO.
COMPLAINT
FILED BY: VALUE PLUMBING CO.
TENTATIVE RULING:

Summary

Before the Court is a demurrer by defendants to the complaint. For the reasons set forth, the demurrer is **overruled**.

Background

Plaintiffs Rene Chavez Machado and Vincente Chavez are putative class plaintiffs in the class action complaint alleging wage and hour violations against defendant Value Plumbing Co. and three of its alleged officers, directors or managing agents, defendants Lisa A. Mullins, Gary A. Mullins, and Todd Mullins. The complaint alleges various wage and hour violations of the Labor Code and a cause of action for violation of the Unfair Competition Law, Business & Professions Code section 17200 *et seq.* ("UCL").

Defendants have filed a demurrer to the complaint in its entirety as a general demurrer for failure to allege facts sufficient to state a cause of action and for uncertainty. (Not. of Dem. p. 3, ll. 4-7.) Plaintiffs oppose the demurrer.

Failure of Demurring Party to Comply with Statutory Meet and Confer (Code Civ. Proc. § 430.41(a))

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone at least five days prior to the deadline for filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. (Code Civ. Proc. § 430.41(a) and (b).) A meet and confer through the exchange of letters or emails does not satisfy the meet and confer requirements of Code of Civil Procedure section 430.41.

Defendants have filed a declaration by their counsel Savage in which she addresses an exchange of emails she had with counsel for Plaintiffs on February 20, 2026. She does not declare that she made any attempt to meet and confer with counsel for Plaintiffs by telephone, videoconference, or in person prior to filing the demurrer. Ordinarily, the Court would continue the hearing for the parties to meet and confer, but the Court exercises its discretion under the circumstances to address the merits of the demurrer.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318].) In determining whether the complaint states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123.)

A general demurrer may be sustained when the facts alleged show the action is barred by the statute

of limitations. (*Vaca v. Wachovia Mortgage Corp.* (2011) 198 Cal.App.4th 737, 746.) To sustain a demurrer based on the statute of limitations, however, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee v. Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [demurrer based on statute of limitations does not lie when the action may be, but is not necessarily, barred].)

Merits Declarations Filed in Support of and in Opposition to the Demurrer

Defendants filed a declaration of Terri Goularte in support of the demurrer. The declarant asserts she is the office manager of defendant Value Plumbing Co., and she provides substantive evidence in the form of a payroll record and a pay stub for Machado and Chavez, respectively. The Court does not consider evidence in ruling on a demurrer, except matters subject to judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The contents of the Goularte declaration and the exhibits are not properly considered in ruling on a demurrer, and the Court has disregarded them.

In support of the opposition, Plaintiffs also filed a declaration of their counsel Davies which in part addresses the merits of the action apparently to respond to Goularte's evidence that the Plaintiffs purportedly were no longer employed by Value Plumbing as of sometime in 2021, among things, with Davies attaching copies of the Plaintiffs' declarations filed in the related class action to support a class certification motion. (Davies Decl. ¶ 9 and Exhs. B and C.) For the same reasons stated above, the Court disregards this evidence in ruling on the demurrer. (*Carloss, supra*, 242 Cal.App.4th at 123; *Donabedian, supra*, 116 Cal.App.4th at 994.)

Analysis

A. Statute of Limitations

Defendants assert that Plaintiffs' employment ended with Value Plumbing in 2021, based on the evidence submitted with the Goularte Declaration which the Court does not consider. They contend that the claims are barred by the statute of limitations and that the complaint alleges claims "outside the scope of employment." (MPA p. 4, ll. 10-15.)

Defendants contends that PAGA claims have a one-year statute of limitations under Code of Civil Procedure section 340(a) as such claims are a "penalty" for failure to comply with the Labor Code. (MPA p. 4, ll. 15-17.) (*But see* MPA p. 5, ll. 19-26 [asserting there is an 18-month limitations period].) Plaintiffs' complaint does not allege a PAGA cause of action. Defendants do not point to any allegations in the complaint which show on the face of the complaint that the Labor Code causes of action and the UCL claim are "clearly and affirmatively" barred by the applicable statute of limitations, nor do they cite any authority that the one-year statute of limitations of Code of Civil Procedure section 340(a) applies to any of the causes of action actually asserted in the complaint.

Plaintiffs' first eight causes of action allege violations of the Labor Code and a right to recover for those violations under multiple Labor Code statutes and the applicable Industrial Wage Orders. The California Supreme Court has held that the three-year statute of limitations of Code of Civil Procedure section 338(a) applies to wage claims, and that a claim under Labor Code section 226.7 is a wage claim. (*Murphy v. Kenneth Cole Productions, Inc.* (2007) 40 Cal.4th 1094, 1102-1104.) The complaint alleges claims for failure to pay minimum wages in violation of Labor Code sections 1194 and 1197 (1st C/A), failure to pay overtime wages in violation of Labor Code sections 510, 1194, and 1198 (2nd C/A), and failure to provide for meal periods in violation of Labor Code sections 226.7 and 512 (3rd

C/A). All of these claims under the *Murphy* decision are wage claims subject to a three-year statute of limitations. Defendants do not cite any allegations of the complaint that on their face show the claims are "clearly and affirmatively" barred by the three-year statute of limitations based on the date of filing of the complaint on October 22, 2025.

Plaintiffs' ninth cause of action alleges violations of the UCL. The UCL has a four-year statute of limitations as provided in Business & Professions Code section 17208. The statute provides in relevant part, "Any action to enforce any cause of action pursuant to this chapter shall be commenced within four years after the cause of action accrued." The Court cannot determine from the face of the complaint that the claims alleged under the UCL are barred by the four-year statute of limitations when the complaint was filed. The fact that these four causes of action survive Defendants' statute of limitations attack is sufficient to warrant overruling the demurrer because Defendants have only generally demurred to the complaint in its entirety and not to any individual cause of action.

B. Scope of Employment and Individual Labor Code Violations

Defendants also contend that Plaintiffs have alleged "representative claims" that do not allege that Plaintiffs individually experienced the violations, such that "they lack standing to assert claims outside the scope of their own employment." (MPA p. 7, ll. 8-11.) Plaintiffs have not alleged PAGA representative claims.

To the extent Defendants contend that Plaintiffs have not alleged that they have suffered individual wage and hour Labor Code violations, the argument is unsupported by citation to specific allegations of the complaint and belied by the Court's review of the complaint. (*See, e.g.*, Compl. ¶¶ 30 ["In violation of the Labor Code and IWC Wage Orders, Plaintiffs and Class Members were not paid all wages (including minimum wages and overtime wages) for all hours worked at the correct rate and within the correct time."], 31 ["In violation of the Labor Code and IWC Wage Orders, Plaintiff and Class Members did not receive all meal periods or payment of one (1) additional hour of pay at Plaintiff's and Class Members' regular rate of pay when they did not receive a timely, uninterrupted meal period."], 32 ["In violation of the Labor Code and IWC Wage Orders, Plaintiffs and Class Members did not receive all rest breaks or payment of one (1) additional hour of pay at Plaintiffs' and Class Members' regular rate of pay when a rest break was missed, late, or interrupted."], and 33 ["In violation of the Labor Code and IWC Wage Orders, Plaintiffs and Class Members incurred necessary business expenses or losses, but were not reimbursed nor indemnified of such expenses or losses that were incurred as a direct consequence of the discharge of their duties, or of their obedience to the directions of Defendants."].)

The general demurrers to the complaint in its entirety on these grounds are **overruled**.

C. Special Demurrer for Uncertainty

Defendants have also made a special demurrer to the complaint in its entirety for uncertainty. (Dem. p. 3, ll. 3-7.) To the extent Defendants' special demurrer for uncertainty is based on the argument the allegations of the complaint are general, or lacking in specificity (MPA p. 7, ll. 3-5), the argument is not supported by any citations to the allegations Defendants complain about or legal authority that supports that the allegations are inadequate.

The Court can sustain a demurrer for uncertainty if the complaint fails to sufficiently apprise the defendants of the claims against them. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.) Because ambiguities can be clarified through discovery, demurrers for uncertainty are generally disfavored. (*Id.*) "[W]here the complaint contains substantive factual

allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' [Citation omitted.]" (*Id.* [quoting *Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2].) The allegations cited above and others made in the complaint adequately apprise Defendants of the issues Defendants are being asked to defend.

Defendants have not shown that the complaint as alleged and properly construed as a non-PAGA, non-representative action is uncertain. The special demurrer to the complaint in its entirety for uncertainty is **overruled**.

16. 9:00 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
RELIEF FROM SANCTIONS
FILED BY: WESTBROOK, LYNETTA

TENTATIVE RULING:

This motion is was withdrawn by Plaintiff. No appearance is required at the August 12, 2026 hearing.

17. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
TO BE RELIEVED AS COUNSEL RE: ATTORNEY DEVON M. THURTLAND ANDERSON
FILED BY:

TENTATIVE RULING:

Summary

Counsel Devon Thurtle Andersen ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Cross-Defendant Daniel Jensen ("Motion"). The Motion is **continued** to August 19, 2026 at 9:00 p.m. Withdrawing Counsel is ordered to file and serve a Declaration in support of Motion to Withdraw that is complete.

Background

On May 20, 2026, Withdrawing Counsel filed the following Declaration in Support of Motion to Withdraw as Counsel, which appears to only contain the following statement:

(This Attachment may be used with any Judicial Council form.)

~~9/30/2026 at 9:01 am - Hearing on Motion for Discovery re: Compel Further Responses to Plain Interrogatories and Admissions, Set 2.~~

Nothing else is attached. The Court presumes that this is an administrative filing error and is without information to make a decision on Withdrawing Counsel's Motion.

Ruling

1. This motion is continued to August 19, 2026 at 9:00 a.m.

2. Withdrawing Counsel shall file and serve an updated Declaration in Support of Motion to be Relieved as Counsel no later than August 14, 2026.
3. Notice is given that the Hon. Charles Steve Treat, sitting on temporary assignment, will be presiding over the law and motion calendar on August 19, 2026.

18. 9:00 AM CASE NUMBER: N25-1803

CASE NAME: CLAIM OF:NOAH BINSOL

***HEARING ON MINOR'S COMPROMISE RE NOAH BINSOL**

FILED BY: BINSOL, JASON

TENTATIVE RULING:

Summary

Petitioner Jason Binsol's Petition for Approval of Compromise of Minor Noah Binson ("Minor") Claim is granted, as set forth below. No appearance is required at the hearing on August 12, 2026.

Background

On September 10, 2025 Petitioner Jason Binsol, parent and guardian ad litem for his child, Minor, filed the Petition through counsel, Thomas Morgan, to compromise the claim that Minor had against Nicholas Rogers Martin, Jr. related to an accident that occurred on State Route 4 in Antioch, CA on October 8, 2024. In that accident, Minor sustained soft tissue injuries. He has fully recovered and there are no permanent injuries.

Geico Insurance Company offered settlement in the amount of \$11,658.99, of which \$ 7,694.25 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$3,964.74 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses and to pay for attorney's fees incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Analysis

A Petition for Minor's Compromise is a mandatory legal procedure in California required to settle any legal claim or lawsuit belonging to a minor child. Under state law, minors lack the legal capacity to sign binding contracts or settlement releases, meaning court approval is required to finalize the settlement and secure the proceeds.

California Probate Code §§ 3500–3613 provides the primary framework for the procedure and disposition of settlement funds. Probate Code Section 3500 grants a parent or guardian the authority to compromise a minor's claim before a lawsuit is filed. Probate Code Sections 3600–3613 regulate how the court must distribute and protect the settlement proceeds. If applicable, California Code of Civil Procedure (CCP) §§ 372–376 governs minors who are already active parties in a pending civil lawsuit. CCP § 372 mandates that a minor must appear via a Guardian Ad Litem (GAL) or a guardian of the estate to execute a compromise.

Lastly, California Rules of Court (CRC), Rules 7.950–7.955: Outlines specific pleading rules, disclosure mandates, attorney fee structures, and the protocols for placing funds into blocked bank account. This Court is required to review the Petition for Approval of Compromise of Claim or Action.

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition.

Ruling

1. The Petition is **granted**.
2. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on September 10, 2025 and the Amended Proposed Order to Deposit Funds into a Blocked Account lodged on June 26, 2026.
3. The Court orders Petitioner Jason Binsol to secure the Bank's signature on **Form MC-356** (*Receipt and Acknowledgment of Order for the Deposit of Money into a Blocked Account*). Counsel or Petitioner must file this signed receipt back with the court within thirty (30) days to prove the money is safely deposited for Minor.
4. No appearance is required at the hearing on August 19, 2026.

19. 9:00 AM CASE NUMBER: N25-2261
CASE NAME: MIA ANDREWS VS. VISTA DEL MAR II HOMEOWNERS ASSOCIATION
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: VISTA DEL MAR II HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

Summary

Respondent Vista Del Mar II Homeowners Association filed a Motion for Judgment on the Pleadings ("Motion") on March 4, 2026. It is unopposed. The Court **grants** this Motion and will execute the proposed order lodged on March 4, 2026. No appearance is required at the hearing on August 12, 2026.

Discovery Law & Motion

20. 9:01 AM CASE NUMBER: C22-01951
CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH
QUASH DEPOSITION OF TARA MULLINS AND FOR PROTECTIVE ORDER
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 20, 21 and 22. Before the Court are three motions scheduled for hearing:

1. Defendant John Muir Health's Motion for Judgment Based Upon Deemed Admissions
2. Plaintiff Dianna Jiminian's Motion for relief From Deemed Admissions

3. Defendant John Muir Health's Motion to Quash and Protective Order re Deposition of Tara Mullins

The Court first addresses the Motion for Judgment and the Motion for Relief.

Background

This action arises from claims asserted by Plaintiff Dianne Jiminian ("Plaintiff") against Defendant John Muir Health ("Defendant" or "JMH"), alleging injuries sustained in the course of Plaintiff's employment. The central disputed issue concerns whether Plaintiff was a special employee of JMH such that workers' compensation provides the exclusive remedy for her claims. On December 17, 2025, this Court ordered Plaintiff to serve amended responses to Defendant's Requests for Admission, Sets Two and Three, by January 8, 2026, finding Plaintiff's initial responses non-compliant with the Code of Civil Procedure.

Plaintiff failed to serve the amended responses by the January 8, 2026 deadline. Plaintiff's counsel attributes this failure to inadvertence and excusable neglect, explaining that his paralegal, who was responsible for calendaring deadlines, was on leave due to a dire family emergency and working intermittently. Counsel further asserts that he was occupied with pressing trial preparation in other matters, including the Hagos and Hammer cases, during this period.

On January 28, 2026, Defendant sought an order shortening time to advance the hearing on its Motion to Deem Requests for Admissions Admitted. The Court granted the advancement and set the hearing for March 12, 2026. On February 2, 2026, Defendant again sought *ex parte* relief to further advance the hearing. Although notice was provided, Plaintiff's counsel did not appear at either *ex parte* proceeding, stating he was engaged in expert depositions and trial preparation in other matters. On February 3, 2026, the Court granted Defendant's Motion to Deem Admissions Admitted, vacated the March 12, 2026 hearing, and deemed the requested matters admitted.

On February 9, 2026, six days after the Court's order deeming admissions admitted, Plaintiff served amended responses to the Requests for Admission. On February 17, 2026, Plaintiff sought *ex parte* relief from the deemed admissions order. The Court found no emergency warranting *ex parte* relief and directed Plaintiff to proceed by noticed motion and to meet and confer with Defendant. On May 19, 2026, the parties met and conferred, but Defendant declined to stipulate to relief from the deemed admissions or to withdraw its pending motions.

The deemed admissions establish that JMH supervised Plaintiff's work, required adherence to JMH policies and procedures, mandated JMH-specific training, dictated scheduling, controlled the instrumentalities of her nursing duties, paid Plaintiff for her services, and possessed authority to terminate her assignment.

Defendant now moves for judgment based upon these deemed admissions, contending they conclusively establish special employment and workers' compensation exclusivity.

Plaintiff moves for relief from the deemed admissions under Code of Civil Procedure section 2033.300, arguing that her failure to timely respond resulted from her Counsel's excusable neglect, that she has served substantially compliant responses, and that the Court improperly granted the motion to deem admissions admitted on an *ex parte* basis without affording her an opportunity to be

heard.

ANALYSIS

1. Standard Governing Deemed Admissions and Relief Therefrom

Pursuant to Code of Civil Procedure section 2033.410(a), any matter admitted in response to a request for admission is conclusively established against the party making the admission. As the California Supreme Court held in *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979, responses to requests for admission constitute binding judicial admissions that remove the admitted issue from controversy and relieve the opposing party of the burden of proof. A party may not introduce evidence contradicting its own admissions (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 774).

Relief from deemed admissions is governed by Code of Civil Procedure section 2033.300, which permits withdrawal or amendment only upon a showing that the admission resulted from "mistake, inadvertence, or excusable neglect," and that no substantial prejudice to the requesting party will result. However, the trial court's discretion is not unlimited. As the Court of Appeal recognized in *New Albertson's, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420-1421, discretion must be exercised in conformity with the spirit of the law; any doubts must be resolved in favor of the party seeking relief only where the neglect is truly excusable and withdrawal would not substantially prejudice the opposing party.

2. Plaintiff Failed to Establish Excusable Neglect

Here, Plaintiff's contention that her failure to calendar the January 8, 2026 deadline constitutes excusable neglect is not well-taken. "Neglect is excusable only if a reasonably prudent person in similar circumstances might have made the same error" (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423). While Plaintiff's Counsel's paralegal's family emergency is unfortunate, an attorney's professional obligations to comply with court orders and meet discovery deadlines cannot be delegated away. The obligation to monitor deadlines and ensure compliance with court orders remains with counsel, regardless of staff absences (*Jerry's Shell v. Equilon Enterprises, LLC* (2005) 134 Cal.App.4th 1058, 1074).

Moreover, "an exceptional workload generally must be accompanied by some factor outside the attorney's control that makes the situation unmanageable" (*Huh* , *supra* , at p. 1424). Plaintiff's counsel's involvement in other litigation, including cases involving the same defense firm, does not constitute such an extraordinary circumstance. The failure to calendar a court-ordered deadline is precisely the type of inexcusable neglect that does **not** warrant relief under section 2033.300.

3. The Court Properly Deemed the Admissions Admitted

Plaintiff's argument that the Court improperly granted the motion to deem admissions admitted on an *ex parte* basis is without merit. This Court possesses broad inherent authority under Code of Civil Procedure section 128(a)(3) and (a)(8) to control its proceedings and provide for their orderly conduct *Estrada v. Royalty Carpet Mills, Inc.* (2024) 15 Cal.5th 582, 597-598. While *Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393 cautions against eliminating the ameliorative function of the statute, it does not deprive trial courts of the authority to manage their calendars and enter appropriate orders.

Furthermore, Plaintiff's counsel had actual notice of Defendant's motion and the potential

consequences of non-compliance. Plaintiff counsel exercised a choice not to appear at the *ex parte* proceedings and failed to serve amended responses until six days after the Court had already deemed the matters admitted. Under these circumstances, the Court's order was proper.

4. The Deemed Admissions Establish Special Employment and Workers' Compensation Exclusivity as a Matter of Law

The deemed admissions conclusively establish that Plaintiff was a special employee of JMH. Under the borrowed-employee doctrine, where a borrowing employer exercises control over the employee's work, equipment, training, and supervision, the employee becomes a special employee, and workers' compensation exclusivity applies (*Caso v. Nimrod Productions, Inc.* (2008) 163 Cal.App.4th 881, 887). The admissions establish that JMH supervised Plaintiff's work, required adherence to JMH policies, mandated JMH training, controlled scheduling and instrumentalities, paid Plaintiff, and possessed termination authority, precisely the control factors that establish special employment.

Because the deemed admissions conclusively establish that Plaintiff's exclusive remedy lies in workers' compensation, no triable issue of fact remains. Pursuant to Code of Civil Procedure section 598 and this Court's inherent authority under section 128, the bifurcated Phase I trial is unnecessary. "The law neither does nor requires idle acts" (Civ. Code, § 3532), and conducting a trial on facts conclusively established through binding admissions would serve no legitimate purpose (*Burr v. Board of Supervisors of Sacramento County* (1892) 96 Cal. 210).

5. Prejudice to Defendant

Granting relief from the deemed admissions would substantially prejudice Defendant. Defendant has relied upon the conclusive effect of the admissions in preparing its defense and in moving for judgment. Permitting withdrawal would resurrect issues that have been conclusively resolved and would require Defendant to litigate facts that Plaintiff has admitted. This is precisely the prejudice that section 2033.300 requires courts to consider.

The Court having considered Defendant John Muir Health's Motion for Judgment Based on Deemed Admissions and Plaintiff Dianne Jiminian's Motion for Relief from Deemed Admissions, together with all supporting and opposing papers, and good cause appearing therefor, finds good cause to grant Defendant's Motion and to Deny Plaintiff's Motion.

Ruling

IT IS THEREFORE ORDERED that:

1. Defendant John Muir Health's Motion for Judgment Based on Deemed Admissions is **granted**. Judgment is hereby entered in favor of Defendant John Muir Health. The trial setting conference calendared for September 21, 2026 is **vacated**.
2. Plaintiff Dianne Jiminian's Motion for Relief from Deemed Admissions is **denied**.
3. This action is hereby dismissed in its entirety with prejudice as to Defendant John Muir Health.
4. Defendant John Muir Health shall recover its costs from Plaintiff Dianne Jiminian pursuant to Code of Civil Procedure section 1032.
5. Based on the foregoing, the Motion to Quash deposition of Tara Mullins is **moot**.
6. Defendant is ordered to prepare and e-file a proposed order conforming to this ruling,

attaching a copy of this ruling, no later than five (5) days from the date of this hearing.

21. 9:01 AM CASE NUMBER: C22-01951
CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH
JUDGMENT BASED ON DEEMED ADMISSIONS
FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

See Line 20.

22. 9:01 AM CASE NUMBER: C22-01951
CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH
MOTION FOR RELIEF OF ADMISSIONS
FILED BY: JIMINIAN, DIANNA

TENTATIVE RULING:

See Line 20.